

Lala Ram v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 11 December 2018 · WRIT - C No. 40671 of 2018 · **Writ disposed of; relegated to Clause 6.5 with limited coercive-action stay.**

HEADNOTE

A consumer seeking waiver of an allegedly inflated bill under the 2017 OTS scheme, reconnection and a PD certificate was not heard on merits. Bill-correctness disputes lie under Clause 6.5 of the U.P. Electricity Supply Code, 2005. The writ was disposed of with a direction to decide a timely application by a speaking order after hearing, and a short stay of coercive action.

FACTUAL SUMMARY

Lala Ram filed a writ in the Allahabad High Court seeking a mandamus to waive the entire amount of an allegedly inflated electricity bill after deducting Rs. 1 lakh under the State Government's 2017 One Time Settlement scheme, to reconnect supply at his home, and to issue a Permanent Disconnection certificate in his favour. Counsel for the Electricity Department appeared. The petition proceeded on the footing that the bill raised against him was incorrect.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness dispute; statutory remedy

HOLDING

A writ seeking waiver of an allegedly inflated bill, reconnection and a PD certificate is not entertained where the consumer disputes bill correctness; the statutory remedy is Clause 6.5 of the U.P. Electricity Supply Code, 2005. An application filed within 10 days is to be decided by a speaking order after hearing, within 30 days; coercive action is stayed for 40 days or until that decision, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL AND ENTITLEMENT TO WAIVER UNDER THE 2017 OTS SCHEME

Left to the Clause 6.5 authority. ¶ 1

NOT DECIDED — RECONNECTION OF SUPPLY AND ISSUE OF A PD CERTIFICATE

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